

25VECV04526 25VECV04526

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C08%2F03%2F2026

Source SHA-256: 09fb4fd6b3d62be0b8bb2bba19f22db0125920156e3dfc21d3d1e519bb0a2a08

Case Number: 25VECV04526 Hearing Date: August 3, 2026 Dept: O

Due to the technical limitations of the Court's tentative judgment system, the Court is posting two separate orders consecutively below which deal with the discovery and pleading motions separately:

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PAULA OLAZABA, an individual,

Plaintiff,

vs.

COSTCO WHOLESALE CORPORATION, a Washington Corporation; NANCY RENTES aka NANCY RENTAS, an Individual; ANTHONY STOUT; ANDREA FRISCIA; ELI RAHHAL; and DOES 1 through 3 and 7 through 100, Inclusive,

Defendants.

)

)

)

)

)

)

On May 6, 2026, the Court granted Defendant's Motion to Strike with leave to amend.

On May 15, 2026, Plaintiff filed a First Amended Complaint ("FAC"), alleging causes of action for (1) General Negligence; (2) Premises Liability; (3) Negligent Infliction of Emotional Distress; (4) Negligence per se; (5) Personal Negligence – Individual Liability of Nancy Rentes aka Nancy Rentas; and (6) Personal Negligence – Individual Liability of Doe 1 .

On June 9, 2026, the Court denied Plaintiff's Motion to Compel Further Responses for Production of Documents, Set One.

On June 11, 2026, Plaintiff amended the FAC to substitute Andrea Friscia, Anthony Stout, Eli Rahhal as Doe Defendant Nos. 4-6, respectively.

On June 23, 2026, Defendants filed the instant demurrer to the Second and Third causes of action and Motion to Strike.

On July 8, 2026, Plaintiff filed her Oppositions to the Demurrer an Motion to Strike.

On July 16, 2026, Plaintiff dismissed Defendant Eli Rahhal.

On July 27, 2026, Defendants filed their Replies.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Defendant's counsel attests she sent a meet and confer letter to Plaintiff's counsel on June 10, 2026, addressing the Second Cause of Action for Premises Liability and the Third Cause of Action for Negligent Infliction of Emotional Distress. (See Declaration of Jennifer J. Park filed June 23, 2026 ("Park Decl."), ¶¶ 4–6.) Counsel attests Plaintiff responded in writing on June 12, 2026, disagreeing with Defendants' position. (See id.) Defendants' counsel then requested additional time to continue meeting and conferring, and Plaintiff granted Defendants an extension through June 23, 2026. (See id., ¶¶ 10–11.) Counsel states the parties did not further meet and confer regarding the demurrer because they instead focused on the concurrently filed Motion to Strike. (See id., ¶ 12.)

Defendants failed to satisfy their meet and confer obligation because the record does not show that counsel conferred in person, by telephone, or video conference. The Court does not consider the exchange of written correspondence which took place here a meaningful attempt to avoid this Court's intervention. The Court will consider the merits of the Demurrer but reminds counsel to comply with its statutory meet and confer obligations. The Court previously denied Plaintiff's discovery motion for failing to meet and confer properly and is prepared to do the same here. It is finding the pattern of lack of communication between counsel extremely concerning because it is wasting resources for all involved, including the Court. However, given the change in the law requiring more than written correspondence to satisfy meet and confer obligations on a demurrer was relatively recent, the Court will address the merits of the demurrer and motion to strike. This is counsels' final warning. The Court will not delve into the conflict between them again unless and until counsel exhausts all possible avenues of resolution.

///

///

IV. LEGAL STANDARD

A. Demurrer

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).) “A demurrer tests the sufficiency of a complaint as a matter of law.” (Durell v. Sharp Healthcare, (2010) 183 Cal.App.4th 1350, 1358.) “[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan, (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court, (1984) 153 Cal.App.3d 902, 905.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (Stevens v. Superior Court, (1986) 180 Cal.App.3d 605, 609-610.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits. (See Barnett v. Fireman’s Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505.) A demurrer can only be sustained when it disposes of an entire cause of action. (See Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See id. at § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (See id. at § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See id. at § 437.) “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Rule of Court, rule 3.1322(a).)

V. ANALYSIS

A. Plaintiff’s Premises Liability Cause of Action Is Duplicative

Premises liability is a form of negligence, “The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury”. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) Premises liability is grounded in a defendant’s possession and control of the property and the corresponding right to control and manage the premises. (id.)

Defendants argue the second cause of action for Premises Liability fails to state a claim because it is duplicative of the first cause of action for General Negligence. (See Dem. at pp. 6–8.) Defendants argue both causes of action arise from the same allegedly dangerous condition and are based on the same duties to inspect, maintain and warn regarding the premises. (id.)

Defendants argue the Premises liability claim does not add any new facts or a separate theory of recovery (id.) Defendants cite *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268; *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128; and *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494 for the position that a demurrer may be sustained against a duplicative cause of action. (id.)

Plaintiff argues the second cause of action is not duplicative because it is based specifically on Costco's ownership, possession, operation and control of the subject property. (See Opp. at pp. 7–9.) Plaintiff argues the Premises liability claim separately alleges Costco's duty as the owner and operator of the property and Costco's actual and constructive notice of the dangerous condition. (id.) Plaintiff further argues the claim is governed by premises specific rules converging a property owner's duties and notice of a dangerous condition. (id.)

The Court agrees with Defendants. The FAC alleges Costco owned, operated, managed and controlled the subject property, including the exterior entrance walkway where Plaintiff allegedly fell. (See FAC, ¶ 2.) The FAC further alleges Costco owed Plaintiff, as a business invitee, a duty to inspect the premises for dangerous conditions, maintain the premises in a reasonably safe condition, and warn of dangerous conditions Costco knew or should have known about. (See id., ¶ 59.)

The second cause of action identifies the alleged dangerous conditions as a wet and slippery entrance walkway that lacked anti slip mats, safety cones, barriers or warning signs. (FAC, ¶ 60.) The FAC alleges Costco had actual notice of the condition based on its knowledge that the walkway became slippery during wet weather, the existence of its wet weather safety procedures, its managers' alleged knowledge of the rainfall, and an employee's alleged inspection of the entrance shortly before Plaintiff's fall. (id. at ¶ 61.) The FAC alleges Costco had constructive notice based on the amount of time the condition allegedly existed and Costco's inspection procedures. (id.) Plaintiff alleges Costco failed to correct the condition or warn Plaintiff, causing her to fall and suffer injuries. (id. at ¶ 62.)

"The elements of a negligence claim and a premises liability are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury... Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.... [Thus,] the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158 (cleaned up); see also *Rowland v. Christian* (1968) 69 Cal.2d 108, 119.) The mere fact Plaintiff's second cause of action alleges Costco owned or controlled the property in addition to their base negligence allegations does not render the two causes of action separate and distinct from one another. Indeed, if Plaintiff succeeds on both causes of action, his measure of damages would be identical.

Accordingly, the Court SUSTAINS Defendants' Demurrer to the Second Cause of Action for Premises Liability WITHOUT LEAVE TO AMEND.

B. Plaintiff Has Stated a Claim for Negligent Infliction of Emotional Distress

Negligent infliction of emotional distress is not an independent tort but is instead form of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072.) The distinction between a "bystander" and a "direct victim" depends on the source of the duty owed by the defendant to the plaintiff. (id.) A direct victim may recover damages for serious emotional distress resulting from the breach of a duty assumed by the defendant, imposed by law, or arising from a relationship between the parties. (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129–130.)

Defendants argue Plaintiff fails to state her third cause of action because she does not fall within the situations in which California courts have recognized direct victim recovery, including the negligent mishandling of human remains, negligent misdiagnosis of a disease, or negligent breach of a duty arising from a preexisting relationship. (See Dem. at pp. 8–9.) Defendants also argue negligent infliction of emotional distress is not an independent cause of action and arises from the same alleged conduct as Plaintiff's General Negligence claim. (See id.) Defendants further argue the FAC does not clearly identify the duty owed to Plaintiff or any specific statute or binding legal duty that Costco allegedly violated. (See id.)

Plaintiff argues she is a direct victim because she personally fell and suffered physical injuries and emotional distress as a result of Costco's alleged negligence. (See Opp. at pp. 10–13.) Plaintiff argues direct victim recovery is not limited to the three situations identified by Defendants. (See *id.*) Plaintiff further argues Costco owed her a duty imposed by law based on its ownership and control of the premises and her status as a lawful business invitee. (See *id.*)

The Court finds Plaintiff sufficiently pleads the third cause of action. The FAC alleges Costco owed Plaintiff, as a lawful business invitee, a duty to exercise ordinary care in the management, maintenance, and operation of the Subject Property. (See FAC, ¶ 52.) The FAC alleges this duty is grounded in Civil Code § 1714 and included maintaining the entrance in a reasonably safe condition, inspecting the premises, correcting dangerous conditions, and warning customers of known or reasonably discoverable hazards. (See *id.*, at ¶¶ 52–53, 59.)

The FAC alleges Plaintiff personally encountered the wet and slippery entrance walkway, fell, and sustained physical injuries. (See *id.*, ¶¶ 47, 60–62.) Finally, and most importantly for purposes of this cause of action, the FAC further alleges Plaintiff suffered serious and enduring emotional distress, including fear, anxiety, embarrassment, sleep disturbance, and loss of enjoyment of life. (See *id.*, ¶ 49.) Plaintiff alleges she directly experienced the trauma of the fall and that Costco's negligence was a substantial factor in causing her emotional distress. (See *id.*, ¶¶ 65–66.)

The Court agrees with Plaintiff that direct victim recovery is not limited to the three factual situations identified by Defendants. A duty imposed by law may support direct victim recovery. (See *Wooden v. Raveling* (1998) 61 Cal.App.4th 1035, 1040–1043.) Here, Plaintiff is not alleging emotional distress from witnessing an injury to another person. Rather, she alleges Costco breached a duty owed directly to her, causing her to fall and suffer physical injuries and emotional distress.

Defendants are correct that negligent infliction of emotional distress is not an independent tort. However, this does not mean Plaintiff fails to state a claim. It means the claim is governed by the ordinary rules of negligence. (See *Burgess*, *supra*, 2 Cal.4th at p. 1072.) Although Plaintiff separately labels the claim as negligent infliction of emotional distress, the FAC alleges the necessary elements of negligence and resulting emotional distress.

The Court also finds the third cause of action is not uncertain.

Thus, the Court **OVERRULES** Defendants' Demurrer to the Third Cause of Action for Negligent Infliction of Emotional Distress.

C. The Court Denies Defendants' Motion to Strike

Defendants' Motion to Strike seeks to strike large portions of the FAC, portions which the Court is not able to ascertain because Defendants' have redacted the most pertinent portions: those identifying the specific allegations sought to be stricken. (See Notice of Motion to Strike filed June 23, 2026, 2:3-5:24.) Therefore, not only is the Court at a loss for evaluating the Motion, but it fails to provide Plaintiff with proper Notice. Indeed, this is precisely why the Rules of Court require the full portions sought to be stricken quoted in full in the Notice of Motion to Strike. (See Rule of Court, rule 3.1322(a).) Accordingly, the Court **DENIES** Defendants' Motion to Strike.

VI. CONCLUSION

Based on the foregoing, the Court **SUSTAINS IN PART** Defendants' Demurrer. Specifically, the Court **SUSTAINS** Defendants' demurrer to the second cause of action for premises liability but **OVERRULES** it as to the third cause of action for negligent infliction of emotional distress.

In addition, the Court **DENIES** Defendants' Motion to Strike.

Defendants are ordered to file an Answer only by no later than August 17, 2026.

In addition, the Court sets an Order to Show Cause Re: Sanctions in the Amount of \$150.00 on Plaintiff's counsel for failure to timely serve Defendants Anthony Stout and Andrea Friscia as required by Rule of Court, rule 3.110(b) on September 1, 2026, at 8:30 a.m.

IT IS SO ORDERED.

DATED: August 3, 2026

Hon. Michael R. Amerian

Judge, Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PAULA OLAZABA,

Plaintiff,

vs.

COSTCO WHOLESALE CORPORATION, a Washington Corporation; NANCY RENTES aka NANCY RENTAS, an individual; ANTHONY STOUT; ANDREA FRISCIA; ELI RAHHAL; and DOES 1 through 3 and 7 through 100, Inclusive,

Defendants.

)

)

)

)

)

)

)

ORDER GRANTING IN PART PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS AND FORM INTERROGATORIES AND DENYING PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION

Plaintiff Paula Olazaba (“Plaintiff”) brings this action against Defendants Costco Wholesale Corporation and Nancy Rentes (collectively, “Defendants”), arising from an alleged slip-and-fall incident on November 26, 2024, at a Costco warehouse located at 6100 Sepulveda Boulevard in Van Nuys, California. Plaintiff alleges she slipped on the wet exterior entrance walkway while it was raining and suffered injuries as a result. (See FAC, ¶¶ 9, 47–49.)

II. PROCEDURAL HISTORY

On August 27, 2025, Plaintiff filed her Complaint.

On May 15, 2026, Plaintiff filed her First Amended Complaint, alleging (1) General Negligence; (2) Premises Liability; (3) Negligent Infliction of Emotional Distress; (4) Negligence Per Se; (5) Personal Negligence against Nancy Rentes aka Nancy Rentas; and (6) Personal Negligence against DOE 1.

On June 9, 2026, the Court denied Plaintiff's Motion to Compel Further Responses for Production of Documents, Set One.

On June 11, 2026, Plaintiff amended the FAC to substitute Andrea Friscia, Anthony Stout, Eli Rahhal as Doe Defendant Nos. 4-6, respectively.

On June 30, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Requests for Production of Documents, Set Two, Nos. 101–108, 136, and 154 ("Motion RFPs").

On July 1, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Requests for Admission, Set Two, Nos. 31–39 ("Motion RFAs"), and the instant Motion to Compel Further Responses to Form Interrogatories, Set Two, Nos. 1.1 and 17.1 ("Motion FROGs").

On July 16, 2026, Plaintiff dismissed Defendant Eli Rahhal.

On July 21, 2026, Defendant Costco Wholesale Corporation filed its Oppositions.

On July 23, 2026, Plaintiff filed her Replies.

///

///

///

III. LEGAL STANDARD

A. Request for Production of Documents

In responding to a request for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See Code Civ. Proc. § 2031.210(a).) [1] If any objections are made, they must: (1) "[i]dentify with particularity any document ... falling within any category of item in the demand to which an objection is being made"; and (2) "[s]et forth clearly the extent of, and the specific ground for, the objection." 2 (Id. at § 2031.240(b).) A statement that the responding party is unable to comply with a particular demand "shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand"; "shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party"; 3 and "shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Id. at § 2031.230.) 4

A party who believes a responding party has served (1) an incomplete statement of compliance, (2) an inadequate, incomplete, or evasive statement of compliance, or (3) an unmeritorious objection can move for an order compelling further responses but must “set forth specific acts showing good cause justifying the discovery sought by the demand.” (See *id.* at §§ 2031.310(a)-(b)(1).)

///

///

B. Interrogatories

A propounding party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.) The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid. (See Cal. Rules of Court, rule 3.1345(c).)

However, where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.” (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.) “The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Columbia Broadcasting System, Inc. v. Superior Court (Rolfe) (1968) 263 Cal.App.2d 12, 19.)

C. Requests for Admissions

Under Code of Civil Procedure § 2033.290, a requesting party may move for further responses to requests for admissions when responses have been timely served but the requesting party finds the requests evasive or incomplete or objections without merit or too general. No further responses can be ordered, however, to RFAs that have been unqualifiedly denied, even if the facts are unquestionably true. (See *Holguin v. Superior Court* (Hoage) (1972) 22 Cal.App.3d 812, 820.)

IV. MEET AND CONFER

Before bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes “misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293-94.)

Plaintiff's counsel states the parties exchanged several letters regarding the discovery disputes. On May 15, 2026, Plaintiff responded to Defendant's request that Plaintiff withdraw the second sets of discovery. As to the Requests for Production, Plaintiff reviewed all 60 demands, withdrew 39 demands, and explained why she continued to seek the remaining 21 demands. Plaintiff's letter also addressed the Requests for Admission and Form Interrogatory No. 17.1 and requested that the parties meet by recorded videoconference. (See Fadare RPD Decl., Ex. C; Fadare FROG Decl., Ex. C.)

On June 9, 2026, Plaintiff sent additional meet and confer letters addressing the Requests for Production and Form Interrogatories and requested further responses by June 16, 2026. Defendant responded regarding the Form Interrogatories on June 16, 2026, and Plaintiff sent another letter on June 18, 2026, giving Defendant until June 25, 2026 to respond. The parties were unable to resolve the disputes. (See Fadare RFP Decl., Ex. D; Fadare FROG Decl., Ex. D–F.)

Based on these efforts, the Court finds Plaintiff made a reasonable and good faith attempt to resolve the discovery disputes before filing the motions.

V. ANALYSIS

A. Plaintiff's Motion RPDs is Granted in part and Denied in part

1. RFP Nos. 101–104

RFP Nos. 101 through 104 seek surveillance footage from the date of the incident. No. 101 seeks footage from cameras covering the Subject Area from 5:00 a.m. through 11:59 p.m. No. 102 seeks footage from cameras covering any entrance, exit, exterior walkway, parking lot approach, or outdoor area of the property during the same period. No. 103 seeks footage depicting Plaintiff from the time she arrived at the property until she departed. No. 104 seeks footage depicting Plaintiff's slip and fall from any camera angle. (Sep. Stmt. Nos. 101-104.)

Costco served the same objection only response to each request, asserting the requests are duplicative, burdensome, disproportionate, vague, irrelevant, privileged, confidential, and seek premature expert disclosure. (See *id.*) Plaintiff argues the footage is relevant to the condition of the Subject Area, the circumstances of her fall, and her presence at the property. Costco argues the requests duplicate or are encompassed by RFP Nos. 11 through 13 from Set One. (See Opp. Fat pp. 6-7.)

The Court finds Nos. 101, 103, and 104 are cumulative or duplicative of Requests already made in Set One. RFP No. 11 sought surveillance footage from cameras at or near the Subject Area for the entire date of the incident, and Set One No. 12 sought footage depicting Plaintiff at the property that day. Costco responded it conducted a diligent search and reasonable inquiry but was unable to produce responsive footage because it did not possess or control the footage, or because footage did not exist.

No. 101 seeks a portion of the same footage requested by Set One No. 11. No. 103 substantially duplicates Set One No. 12, and footage of the fall sought by No. 104 would be encompassed by Set One Nos. 11 and 12. Thus, the Court sustains Defendants objections and DENIES Plaintiff's Motion as to Nos. 101, 103, and 104.

No. 102 is not entirely duplicative because it seeks footage from exterior areas beyond the Subject Area. Plaintiff has shown good cause for footage depicting customer entrances, exits, and exterior walkways, which may show the weather conditions and use of wet weather safety measures at the property and every parking lot approach to the entrance.

Thus, the Court GRANTS IN PART Plaintiff's Motion RFP as to No. 102 for footage from cameras covering customer entrances, customer exits, and exterior walkways from 5:00 a.m. through 11:59 p.m. on November 26, 2024. Costco is ordered to serve a verified, code compliant further response and produce any footage responsive to this Request.

2. RFP Nos. 105–106

No. 105 seeks video footage depicting the condition of the Subject Area during the forty eight hours preceding the date of the incident, including the presence or absence of anti-slip mats, warning cones, warning signs, or drainage equipment. No. 106 seeks similar footage for the forty eight hours following the date of the incident, including any changes, additions, or removal of safety equipment. (Sep. Stmt. Nos. 105-106.)

Costco served the same objection only response to both requests. Plaintiff argues the footage is relevant to Costco's alleged knowledge of a recurring wet weather hazard and whether safety measures were deployed before and after the incident. Costco argues the requests are duplicative of Set One Nos. 13 and 14 and that Plaintiff has not established the relevance of footage from the surrounding days.

The Court finds No. 105 is cumulative of Set One No. 13 to the extent it seeks footage from the twenty four hours immediately preceding the incident. Although No. 105 expands that period by an additional twenty four hours, Plaintiff does not identify any specific event or condition during that additional period that would justify the expanded request. Thus, No. 105 is overbroad.

The Court also finds No. 106 is encompassed by Set One No. 14, which sought all photographs or videos of the Subject Area taken on the date of the incident or within sixty days thereafter. No. 106 seeks a narrower portion of the same footage.

Thus, the Court DENIES Plaintiff's Motion as to RFP Nos. 105 and 106.

3. RFP Nos. 107–108

No. 107 seeks all video footage depicting any Costco employee inspecting, walking through, or otherwise attending to the Subject Area on the date of the incident. No. 108 seeks all video footage depicting any Costco employee responding to or attending to Plaintiff following the incident on the date of the incident. (Sep. Stmt. Nos. 107-108.)

Costco served the same objection only response to both requests. Plaintiff argues No. 107 is relevant to the alleged floor walk inspection shortly before her fall and No. 108 is relevant to Costco employees' response afterward. Plaintiff further argues Set One did not specifically request footage of employee conduct. Costco argues the requests are encompassed by Set One Nos. 11 and 12 because those requests already sought footage of the Subject Area and Plaintiff on the date of the incident.

The Court finds Nos. 107 and 108 seek relevant footage but are unreasonably cumulative or duplicative of Set One. Set One, RFP No. 11, sought all surveillance footage from cameras at or near the Subject Area for the entire date of the incident. Any footage depicting employees inspecting or attending to that area would be encompassed by No. 11. Set One, RFP No. 12, sought all surveillance footage depicting Plaintiff at the property on the date of the incident. Footage depicting an employee responding to or attending to Plaintiff would be substantially encompassed by that request.

Although Nos. 107 and 108 describe particular employee conduct, that additional specificity does not create a separate category of footage from the surveillance footage already requested in Set One. Rather, such footage is just a subset of what Plaintiff already request.

Thus, the Court DENIES Plaintiff's Motion RFPs as to Nos. 107 and 108.

4. RFP No. 136

No. 136 seeks all insurance certificates or evidence of insurance provided to Costco by any contractor responsible for maintaining or cleaning the Subject Area and in effect on the date of the incident. (Sep. Stmt. No. 136.)

Costco served an objection only response. Plaintiff argues the documents may identify contractors responsible for the Subject Area and establish the scope of their insurance coverage. Costco argues the documents are irrelevant because Plaintiff alleges she slipped on rainwater rather than because of a contractor's maintenance work. Costco also asserts burden and third party privacy objections.

The Court finds Plaintiff has shown good cause for the requested documents. No. 136 is narrowly limited to insurance information concerning any contractor responsible for maintaining or cleaning the Subject Area on the date of the incident. Such documents may identify a potentially responsible contractor and insurance coverage relevant to the action. The request is not duplicative of Set One, and Costco has not substantiated its burden, privacy, or privilege objections.

Thus, the Court GRANTS Plaintiff's Motion as to No. 136. Costco shall serve a verified, code compliant further response and produce any material responsive to it.

5. RFP No. 154

RFP No. 154 seeks all documents reflecting any first aid kit inventory, automated external defibrillator ("AED") log, or medical equipment maintenance record for the property for the one year preceding and six months following the date of the incident. (Sep. Stmt. No. 154.)

Costco served an objection only response. Plaintiff argues the records are relevant to her allegations that Costco's employees failed to offer or summon emergency medical services and failed to ensure she received appropriate immediate medical attention. Costco argues the records are irrelevant because Plaintiff did not suffer a cardiac emergency or require an AED and did not request medical assistance.

The Court finds No. 154 is not duplicative of any request in Set One. Plaintiff has shown good cause for records reflecting the first aid supplies available at the property at the time of the incident. However, the request is overbroad as to its eighteen month period and its inclusion of all AED logs and medical equipment maintenance records. Plaintiff does not allege that she suffered a cardiac emergency or otherwise explain how those records are reasonably calculated to lead to the discovery of admissible evidence.

Thus, the Court GRANTS IN PART Plaintiff's Motion as to No. 154. Costco shall serve a verified, code compliant further response and produce the most recent first aid kit inventory records for the six months preceding the incident at issue.

B. Plaintiff's Motion FROGS is Granted In Part

FROG No. 1.1 asks Costco to identify each person who prepared or assisted in preparing its responses to the interrogatories. No. 17.1 asks whether each response to a request for admission served with the interrogatories is an unqualified admission and, if not, asks Costco to identify the facts, persons, and documents supporting its response. (Sep. Stmt. Nos. 1.1, 17.1.)

Costco responded to both interrogatories with objections only. Plaintiff argues No. 1.1 is a standard identification interrogatory and No. 17.1 seeks relevant information supporting Costco's responses to RFA Set One. Costco argues No. 17.1 does not apply because Plaintiff did not serve RFA Set One with FROGS Set Two and instead attached Costco's prior

RFA responses.

The Court finds a further response to No. 1.1 is warranted. No. 1.1 only asks Costco to identify the persons who prepared or assisted in preparing its responses. Costco has not shown that this information is duplicative, irrelevant, or privileged.

The Court finds a further response to No. 17.1 is not warranted. No. 17.1 applies to requests for admission "served with these interrogatories." Plaintiff did not serve any requests for admission with FROGs Set Two. Instead, Plaintiff attached Costco's prior responses to RFA Set One. Those responses are not requests for admission, and the Court declines to apply No. 17.1 to requests served in a previously served set of discovery.

The Court GRANTS IN PART Plaintiff's Motion FROGs. Costco shall serve a verified, code compliant further response, without objection, to No. 1.1.

C. Plaintiff's Motion RFAs is Denied.

1. RFAs

Plaintiff moves to compel further responses to RFA Nos. 31 through 39. Nos. 31, 32, 34, 35, 36, and 39 concern the employees working at the Property on the date of the incident and Costco's staffing records and policies. Nos. 33 and 37 concern whether Costco's prior discovery responses were complete. No. 38 concerns whether Costco's staffing investigation includes documents that have not been produced. (See Sep. Stmt., Nos. 31-39.)

Costco initially responded with objections only. As to Nos. 36 through 39, Costco also objected the requests exceeded the statutory limit. Plaintiff attached a supporting declaration explaining why the additional requests were necessary. The Court finds it substantially complies with Code of Civil Procedure §§ 2033.040 and 2033.050. Thus, the Court overrules Costco's objection.

After Plaintiff filed the Motion, Costco served further responses admitting or denying Nos. 31, 32, 34, 35, 36, and 39. Plaintiff does not dispute Costco served those responses, although they were not attached to the Opposition. Because Costco has now provided substantive responses, the Court does not need to rule on those requests. Costco continues to rely on its objections to Nos. 33, 37, and 38, which the Court sustains on grounds they are, by the very nature of their phrasing, duplicative of previously served discovery requests.

Based on the foregoing, the Court DENIES Plaintiff's Motion RFAs.

VI. DISCOVERY SANCTIONS

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, interrogatories, or requests for admission, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc. §§ 2031.310(h), 2030.300(d), 2033.290(c).)

Plaintiff requests discovery sanctions in the total amount of \$6,000.00. This total comprises \$2,500.00 for the RPD Motion, \$2,000.00 for the RFA Motion, and \$1,500.00 for the FROGs Motion. Not all of Plaintiff's motions were granted in their entirety. To the extent, Plaintiff succeeded on them, the Court finds Defendants' opposition was substantially justified. Accordingly, the Court denies Plaintiff's request for discovery sanctions.

VII. CONCLUSION

Based on the foregoing, the Court GRANTS IN PART Plaintiff's Motion RFPs as to RFP Nos. 102, 136, and 154, GRANTS IN PART Plaintiff's Motion FROGs only as to FROG 1.1, and DENIES Plaintiff's Motion RFAs. Defendant shall provide further code-compliant further responses in compliance with this Order on or before August 24, 2026.

Finally, the Court DENIES Plaintiff's request for discovery sanctions.

IT IS SO ORDERED.

DATED: August 3, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.